

TENTATIVE RULING

Case: **Mitchell v. Langston**
 Case No. CV-2025-3055

Hearing Date: **January 15, 2026** **Department Eleven** **9:00 a.m.**

On the Court’s own motion, plaintiff Frederick Mitchell’s motion for a court order to disregard the false “declaration of demurring or moving party regarding meet and confer” filed on November 24, 2025 under penalty of perjury as to defendant Theresa Langston and to enter default and default judgment nunc pro tunc to November 25, 2025 is **CONTINUED** to **February 3, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: **Sarkis v. Yolo County Public Agency Risk Management Insurance Authority et al.**

Case No. CV-2024-2614

Hearing Date: **January 15, 2026** **Department Fourteen** **9:00 a.m.**

Defendants Yolo County Public Risk Management Insurance Authority (“YCPARMIA”) and Jill Perez’s (“Perez”) (collectively, “defendants”) request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subds. (b), (c), (d), 453.)

The Court declines to rule on plaintiff Armond Sarkis’ (“plaintiff”) evidentiary objections nos. 5 and 7 as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).) Given the Court’s October 30, 2025, ruling deeming the documents attached as Exhibit A and Exhibit B to defendants’ notice of errata (filed on October 8, 2025) to have been originally filed and served with defendants’ moving and supporting papers on their motion for summary judgment [filed 7/5/25], and further allowing defendants to file an amended reply, plaintiff’s evidentiary objections nos. 1, 2, 3, 6, and 8 are **OVERRULED AS MOOT**. (Minute Order [dated 10/30/25]; Notice of errata, p. 1, Exhibits A & B [filed 10/8/25]; defendants’ Supp. Reply [filed 12/30/25].) The Court **OVERRULES** plaintiff’s evidentiary objection no. 4.

The Court declines to rule on defendants’ objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendants’ motion for summary adjudication as to the first cause of action (age discrimination in employment) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); Gov. Code, § 12940, subd. (a).) The Court finds defendants met their burden of showing a legitimate nondiscriminatory reason for taking an adverse employment action against plaintiff. (*Swanson v. Morongo Unified School Dist.* (2014) 232 Cal.App.4th 954, 966; *Arteaga v. Brink’s, Inc.* (2008) 163 Cal.App.4th 327, 352; *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 433; UMF 8-15, 21, 24-26; Memo. Pts. & Auths., p. 7-12.) The Court further finds that plaintiff failed to produce substantial admissible evidence that defendants stated reason for the adverse employment action was untrue or pretextual, or that defendants acted with a discriminatory animus. (*Swanson, supra*, 232 Cal.App.4th at p. 966; *DeJung v. Superior Court* (2008) 169 Cal.App.4th 533, 553.)

Defendants’ motion for summary adjudication as to the second cause of action (national origin discrimination in employment) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); Gov. Code, § 12940, subd. (a).) The Court finds defendants met their burden of showing a legitimate nondiscriminatory reason for taking an adverse employment action against plaintiff. (*Swanson, supra*, 232 Cal.App.4th at p. 966; *Arteaga*, 163 Cal.App.4th at p. 352; *King, supra*, 152 Cal.App.4th at p. 433; UMF 8-15, 21, 24-26; Memo. Pts. & Auths., p. 7-12.) The Court further finds that plaintiff failed to produce substantial admissible evidence that defendants stated reason for the adverse employment action was untrue or pretextual, or that defendants acted with a discriminatory animus. (*Swanson, supra*, 232 Cal.App.4th at p. 966; *DeJung*, 169 Cal.App.4th at p. 553; *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 541.)